

SERVICE AGREEMENT			
FIRST PARTY		SECOND PARTY	
DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY (DICT)		Name	JAYKEE M. ABA-A
Address	J.Rosales Avenue, Butuan City	TIN	654-867-655
Representative	MARIO P. CUÑADO Regional Director	Address	Purok-3, Brgy. Payapang, Bacuay, Surigao del Norte
TERMS AND CONDITIONS			
Office/Place of Assignment	DICT Surigao del Norte Provincial Office		
Contract Period	January 1, 2025 to June 30, 2025	Comparable Position	Planning Assistant
Basic Service Fee per month	Php 20,534.00	With 20%	Php 24,640.80
GENERAL PROVISIONS			
1. The FIRST PARTY engages the services of the SECOND PARTY as [a/an] [Time-based/Output-based] Job Order Worker at rates equivalent and/or comparable to Planning Assistant and is expected to perform the functions detailed in the Terms of Reference attached hereto as Annex "A", which is made an integral part hereof. This notwithstanding, the SECOND PARTY cannot perform work rendered by regular personnel of the FIRST PARTY, unless necessary in the exigency of service.		8. The SECOND PARTY shall perform the services with the highest standards of professionalism, ethical competence, and integrity, and in this regard, strictly comply with the FIRST PARTY's code of conduct and other applicable policies, rules and regulations. The SECOND PARTY shall undergo and must pass the performance evaluation to be conducted by [HIS/HER] immediate supervisor or the department official duly designated by the Secretary. Failure to pass such evaluation may be a ground for termination of this Agreement.	
2. The SECOND PARTY must render work for at least five (5) days a week or whenever required to perform work. The SECOND PARTY must, twice a month, submit to the Human Resource Management Division (HRMD) [HIS/HER] detailed Accomplishment Report (AR) and Daily Time Record (DTR) signed by [HIS/HER] immediate supervisor.		9. Nothing in this Agreement shall be construed as a guarantee for a permanent position or regularization of the SECOND PARTY. This notwithstanding, the SECOND PARTY may be considered for appointment to vacant plantilla positions in the FIRST PARTY's Organization Structure and Staffing Pattern, subject to existing Civil Service laws, rules and regulations.	
3. The FIRST PARTY may, in its discretion, transfer the SECOND PARTY to another, or additional, place of assignment, in a temporary or permanent capacity, without any change in the emoluments and other monetary privileges, taking into consideration the latter's background and qualifications.		10. During the first six (6) months of effectivity of this Agreement, the FIRST PARTY shall evaluate the performance of the SECOND PARTY, and upon the results thereof, determine whether or not to continue engaging the services of the latter for the next six (6) months, which shall in no case go beyond the current calendar year, subject to the availability of funds and continued need for the latter's services.	
4. The engagement of the SECOND PARTY shall be governed by the provisions, prohibitions, and limitations, including the qualifications and disqualifications, laid down in DICT Department Order (D.O.) No. 04, s. 2020, as amended, and other relevant laws, circulars, issuances, and departmental orders.		11. For the duration of this Agreement and for a period of one (1) year from its expiry or termination, the SECOND PARTY shall be prohibited from being engaged or otherwise employed by any private person or entity that has an existing contract with the FIRST PARTY.	
5. There shall be no employer-employee relationship between the Parties arising from, as a result of, or in relation to this Agreement. The SECOND PARTY shall neither be covered by the Civil Service Rules and Regulations for plantilla or regular personnel, nor shall [HIS/HER] services rendered be credited as government service. Nevertheless, [HIS/HER] shall be covered by the CSC-COA-DBM Joint Circular No.1 s. 2017, as amended, and other relevant and applicable laws, policies, circulars, rules and regulations.		12. The SECOND PARTY may be allowed to travel only if its: a) local; and b) required in the performance of [HIS/HER] duties, as indicated in Annex "A". The SECOND PARTY cannot go on official travels abroad at the expense of the government. Similarly, The SECOND PARTY is not entitled to local and foreign training programs, seminars, conferences, and other similar gatherings that are facilitated, conducted, or sponsored at the expense of the FIRST PARTY.	
6. The SECOND PARTY warrants that [HIS/HER] is of good moral standing, and has not been previously dismissed by reason of any administrative or criminal case, and that [HIS/HER] possesses the qualifications, education, experience, skills, or expertise required to perform the services detailed in Annex "A".		13. The SECOND PARTY shall assign to the FIRST PARTY all intellectual property rights, including, but not limited to, patents, copyright, utility model, and related rights arising from the services that the former will render to the latter, in exchange for the service fee that the SECOND PARTY receives in connection with [HIS/HER] duties and responsibilities under this Agreement. The SECOND PARTY shall execute all documents, and do all acts as may be deemed necessary by the FIRST PARTY, to give effect to this provision.	
7. The FIRST PARTY may, from time to time, subject the SECOND PARTY to random tests for prohibited or regulated drugs to ensure [HIS/HER] fitness for the job or work to be performed.		14. The provisions of relevant issuances, circulars, and department orders are annexed hereto and form an integral part hereof. In addition, all relevant laws, rules and regulations also apply and govern this Agreement.	
SERVICE FEE AND FUNDING		NON-DISCLOSURE OF CONFIDENTIAL INFORMATION	
1. The amounts due to the SECOND PARTY as Service Fee shall be payable in two (2) equal payments, every fifteenth (15th) and thirtieth (30th) of the month, supported by the SECOND PARTY's duly approved AR and DTR, via bank deposit, and subject to applicable government taxes 2. The SECOND PARTY may be allowed to claim transportation and other related expenses incurred during official and /or project-related local travels related to SECOND PARTY's functions as may be chargeable against the applicable General Appropriation Act (GAA) 2025 Funds of the FIRST PARTY covering the period of this Agreement, in accordance with DICT DO No. 04, s. 2020, as amended and Executive Order No. 77, s. 2019, and subject to availability of funds therefore, and under strict compliance with the budgeting, accounting, and auditing rules and regulations. 3. This Agreement shall be funded from the General Appropriation Act (GAA) 2025 Funds under the CYBERSECURITY BUREAU for the fiscal year covering the effectivity period of this Agreement.		All the information received by the SECOND PARTY in connection with the services rendered to the FIRST PARTY, and marked or indicated in any way as proprietary and/or confidential shall not be disclosed or given to any third party. In case of doubt, the information shall be treated as confidential, except under the following circumstances: a. Information already known or obliged by the receiving party by independent means through no breach of any obligation of confidentiality. However, when such information becomes an integral component of the DICT on any of its undertaking, they shall be deemed as proprietary and/or confidential; b. Information in the public domain; c. Information required to be disclosed by law or pursuant to an order of the Court, or at the direction of any competent government authority; and d. Information that the FIRST PARTY agrees in writing that the SECOND PARTY may disclose to third parties. The foregoing obligation on confidentiality and non-disclosure shall survive and subsist even after the expiration or termination of this Agreement. In case of breach of this provision, the FIRST PARTY may exercise its rights against the SECOND PARTY in accordance with all relevant laws, rules, regulations, and issuances, in addition to this Agreement.	
TERMINATION OF AGREEMENT			
1. Either Party may pre-terminate this Agreement, by sending written notice to the other Party, at least thirty (30) days prior to the intended date of termination. The receiving Party may expressly waive the 30-day waiting period and opt for the immediate termination of this Agreement.			
2. The FIRST PARTY may immediately terminate this Agreement, at any period upon written notice to the SECOND PARTY, for unsatisfactory performance, conflict of interest, or for any of the grounds enumerated under Paragraph IV (D) of DICT DO No. 04 s. 2020, as amended. In addition, any violation of the warranties or provisions under this Agreement is a ground for termination.			
TURN OVER AND CLEARANCE REQUIREMENTS		DISPUTE RESOLUTION	
1. The SECOND PARTY shall, within thirty (30) days after either the expiration or the notice of termination of this Agreement, and without need of any demand: a. Turn over to the FIRST PARTY all files, records, programs, reports, official documents, codes, security keys, and other departmental equipment, items, and assets that are in his possession and custody. b. Secure the Clearance from All Accountabilities duly approved by the FIRST PARTY.		1. The Agreement shall be construed, interpreted, and governed by the laws of the Philippines. Any conflict or dispute arising out of this Agreement or the interpretation of any provision hereof shall be settled amicably, through the authorized representatives of the Parties, within thirty (30) days from written notice of either Party, specifying the alleged dispute, and the proposed schedule for the resolution thereof, which must be finalized within five (5) days from issuance of the aforementioned written notice.	
2. The SECOND PARTY shall submit the duly approved Clearance from All Accountabilities as a condition precedent to the release of [HIS/HER] final Service Fee payment.		2. If the Parties fail to settle their conflict or dispute amicably, either Party may initiate arbitration pursuant to Republic Act No. 9285, by sending a notice to the other of such intention to commence arbitration. The arbitration shall be conducted before a sole arbitrator chosen by both Parties, with the seat of arbitration at any place in Butuan City, which shall have exclusive jurisdiction over the dispute.	
3. The SECOND PARTY shall not be entitled to the benefits granted to regular plantilla employees, such as PERA, ACA, RATA, mid-year bonus, productivity incentive, thirteenth month pay, Christmas bonus, cash gifts, and other similar benefits under pertinent CSC, DBM, and COA laws, directives, policies, circulars, rules, and regulations on the matter.		3. In case of failure to settle any conflict or dispute through arbitration, suits for any breach of this Agreement shall only be instituted in the court of competent jurisdiction in Quezon City, to the exclusion of all other courts.	
IN WITNESS WHEREOF, the Parties have hereunto set their hands this 26th day of December 2024 at DICT Caraga Regional Office, Butuan City.			
MARIO P. CUÑADO Regional Director, Region 13		JAYKEE M. ABA-A TIN Number: 654-867-655	
Certification as to Availability of Funds:		Certification as to Correctness of Comparable Salary Grade and Qualification Standard:	
OBRs:			
AMOUNT:	MARK CHRISTIAN L. ARIZALA Budget Officer II ELODIE C. TUQUIB Chief, Administrative and Finance Division		

ACKNOWLEDGEMENT

Republic of the Philippines)
) S.S.

Before me, a Notary Public for and in Butuan City, on the date and at the place first above written, personally appeared the following:

Name	Gov't Issued ID	Place Issued	Date Issued
MARIO P. CUÑADO	UMID 011-436-2433	General Santos City	
JAYKEE M. ABA-A	NID No. 4025-3763-4950-6846	Surigao Del Norte	March 3, 2024

Known to me and to me known to be the same persons who executed the foregoing **Service Agreement** consisting of two (2) pages including this page on which the Acknowledgement is written, and they acknowledged to be the same is their free and voluntary act and deed as well as the free and voluntary act and deed of the organizations herein represented.

IN WITNESS WHEREOF, I have hereunto set my hand and seal on the date above written.

NOTARY PUBLIC

Doc. No. ____;
Page No. ____;
Book No. ____;
Series of 2025.